Prosecution Service of Ukraine

OFFICE OF THE PROSECUTOR GENERAL

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USREOU Code 00034051

3 June 2026 No. 10/1/1-4939-17 To No. _____ dated _____

To Vladyslav Serhiyovych Miftakhutdinov
v.miftakhutdinov@vbpartners.ua

The prosecutor has considered Your motion dated 29 May 2026 No. 20260529/1 in the interests of Oleksandr Boguslayev in criminal proceeding No. 22017000000000272 dated 6 July 2017 on determination by the prosecutor of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

Following the results of consideration of the indicated motion, I inform about the refusal to satisfy it and send the corresponding ruling.

Annex: copy of the ruling on refusal to satisfy the motion on 2 sheets.

Prosecutor of the First Division of the Department for Organization and Procedural Guidance of Pre-Trial Investigation and Maintenance of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies



Oleksandr SAFARYAN

Офіс Генерального прокурора
03.06.2026 №10/1/1-54104ВИХ-26
10/1/1-4939-17

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_____ No. _____ To No. _____ dated _____

RULING
on refusal to satisfy motion

City of Kyiv «03» June 2026

Prosecutor of the First Division of the Department for Organization and Procedural Guidance of Pre-Trial Investigation and Maintenance of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies of the Office of the Prosecutor General Safaryan O.E., having examined the materials of criminal proceeding No. 22017000000000272 dated 6 July 2017,

ESTABLISHED:

The Office of the Prosecutor General received a motion dated 29 May 2026 No. 20260529/1 of attorney Vladyslav Miftakhutdinov in the interests of Oleksandr Boguslayev in criminal proceeding No. 22017000000000272 on determination by the prosecutor of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

In the course of its consideration, it was established that investigators of the Main Investigation Directorate of the Security Service of Ukraine on 6 July 2017 initiated pre-trial investigation in criminal proceeding No. 22017000000000272 based on indications of a crime provided for by Article 113 of the CC of Ukraine, assigned to the investigative jurisdiction of investigators of security bodies.

During the investigation, investigators of security bodies revealed a series of other crimes committed both by officials of JSC "Motor-Sich" and by other persons, and prosecutors made decisions on consolidation under twenty-seven episodes of criminal activity initiated under various parts of Articles 111, 111², 113, 114¹, 190, 191, 209, 212, 233, 258³, 219, 333, 358, 364 of the CC of Ukraine.

Following the results of the investigation of these criminal offenses from 2021 to 2024, accusations were brought against Volodymyr Pryadko under Article 367 of the CC of Ukraine, Petro Zaruba under Article 258³ of the CC of Ukraine, Petro Kononenko under Article 258³ of the CC of Ukraine, Vyacheslav Boguslayev under Articles 111¹, 111², 114¹, 258³ of the CC of Ukraine, and Oleh Dzyuba under Articles 111¹, 111², 258³ of the CC of Ukraine, with subsequent severance of materials of pre-trial investigation regarding these persons and adoption of final decisions on referral to court.

By investigators of the Main Investigation Directorate of the Security Service of Ukraine, from 24 January 2024 pre-trial investigation of the specified criminal proceeding has been carried out as part of a joint investigation team (JIT) with the French Republic and the Principality of Monaco regarding facts of legalization on the territory of the European Union of USD 650 million obtained by Oleksandr Boguslayev as a result of the sale of shares of JSC "Motor Sich" unlawfully acquired by Vyacheslav Boguslayev.

On the basis of evidence obtained by the joint investigation team, Vyacheslav Boguslayev on 28 April 2025 was notified of suspicion of misappropriation of shares of JSC "Motor Sich" in especially large amounts (Part 5 of Article 191 of the CC of Ukraine) with subsequent legalization (laundering) of proceeds from illegal

sale of these shares to PRC citizens by prior conspiracy with his son Oleksandr Boguslayev (Part 3 of Article 209 of the CC of Ukraine), who was notified of suspicion under Part 3 of Article 209 of the CC of Ukraine on the territory of the Principality of Monaco by JIT members on 30 April 2025.

The criminal offenses provided for by Part 5 of Article 191 of the CC of Ukraine and Part 3 of Article 209 of the CC of Ukraine were detected specifically during the investigation by investigators of security bodies of a series of criminal offenses under their investigative jurisdiction in criminal proceeding No. 22017000000000272.

In addition, in this very criminal proceeding, the Prosecutor General on 11 July 2019 had already made a decision to entrust the conduct of pre-trial investigation to investigators of the Main Investigation Directorate of the Security Service of Ukraine on the basis of Part 5 of Article 36 of the CPC of Ukraine due to its inefficiency.

Currently, pre-trial investigation is carried out not only regarding Vyacheslav Boguslayev and Oleksandr Boguslayev under Articles 191 and 209 of the CC of Ukraine, but also regarding facts of commission of crimes provided for by various parts of Articles 111, 111^1, 111^2, 113, 114^1, 190, 191, 209, 212, 219, 233, 258^3, 333, 358, 364 of the CC of Ukraine.

Vyacheslav Boguslayev, at the time accusations were brought against him under Articles 111^1, 111^2, 114^1, 258^3 of the CC of Ukraine and notice of suspicion under Articles 191, 209 of the CC of Ukraine, did not have the status of a People's Deputy of Ukraine.

The completion of the commission of the criminal offense incriminated against Vyacheslav Boguslayev provided for by Article 191 of the CC of Ukraine, as well as the commission of the criminal offense provided for by Article 209 of the CC of Ukraine, occurred after JSC "Motor Sich" completely left state ownership.

Therefore, a decision to entrust the conduct of pre-trial investigation in this criminal proceeding (which is taken taking into account the provisions of the CPC of Ukraine on investigative jurisdiction) has already been made, and grounds for determining another investigative jurisdiction have not been established.

Also, the Acting Prosecutor General on 30 September 2025 adopted a ruling on resolving the dispute over investigative jurisdiction in this criminal proceeding, which was determined to investigators of security bodies – the Main Investigation Directorate of the Security Service of Ukraine.

At the same time, the attorney in the motion requests to determine investigative jurisdiction in the criminal proceeding. Such a decision is taken in the form of a ruling and does not pertain to investigative or procedural actions, the right to petition for the conduct of which is granted to the defense pursuant to the provisions of Article 220 of the CPC of Ukraine.

On the basis of the above, guided by the requirements of Articles 36, 110, 220 of the CPC of Ukraine,

RULED:

1. To refuse attorney Vladyslav Miftakhutdinov, who acts in the interests of suspect Oleksandr Boguslayev in criminal proceeding No. 22017000000000272, in the satisfaction of the motion dated 29 May 2026 No. 20260529/1 on determination of the investigative jurisdiction of this criminal proceeding to the National Anti-Corruption Bureau of Ukraine.

2. To send a copy of the ruling to attorney Vladyslav Miftakhutdinov.

The ruling may be appealed during pre-trial investigation to an investigating judge in accordance with the procedure provided for by Articles 303–306 of the CPC of Ukraine, within ten days from the day of receipt by the person of a copy of the ruling.

Prosecutor of the First Division of the Department for Organization and Procedural Guidance of Pre-Trial Investigation and Maintenance of Public Prosecution in Criminal Proceedings of Security Bodies of the Department for Supervision over Compliance with Laws by Security Bodies



Oleksandr SAFARYAN